

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/05/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01581477 Gross v. Gross	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 25), Request for Judicial Notice (ROA 23), Plaintiff's Opposition to Defendant's Demurrer (ROA 32) and Plaintiff's Declaration in Support (ROA 34). The Court GRANTS the request for Judicial Notice made by the Defendant. "A demurrer tests the pleading alone, and not the evidence or the facts alleged. Thus, a demurrer will be sustained only where the pleading is defective on its face." (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.</i> (1998) 68 Cal.App.4th 445, 459.) The Court may take Judicial Notice in review of a demurrer. The Grant Deed in this matter clearly shows that the subject property is owned by "Sally Warpinski, and her successors, as Trustee of the Lion King Family Trust dated December 21, 2017" (Exhibit C). Plaintiff requests that the Court consider the Declaration of Sue Gross in this demurrer proceeding, which is improper as the Court is not allowed to consider extrinsic evidence as cited in the Plaintiff's own moving papers (page 4 of the Opposition, lines 13-15).

		As to that sole basis, the Court SUSTAINS the Demurrer and grants leave to amend the Complaint. Plaintiff is ordered to file an Amended Complaint within 5 business days of the Court hearing.
3	30-2026-01582151 12575 9th Street, L P. vs. Flores	The Court has read and considered Defendants Sarah Angulo and Pedro R. Torres' Motion to Quash Service (ROA 29) and Plaintiff's Opposition (ROA 42). The Court takes Judicial Notice of the Proof of Service of Summons regarding Pedro R. Torres (ROA 16), Proof of Service of Summons regarding Yesseln C. Flores aka Yesselin Torres (ROA 12), Proof of Service of Summons regarding Sarah Angulo (ROA 10), and Proof of Service of Summons regarding Pedro L Torres (ROA 8). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code section 647. Here, registered process server George Craig (Los Angeles #2019267578) personally served Pedro R. Torres and Yesselin Torres on 7/9/2026 at 1:29 PM. Process Server Craig served Sarah Angulo via substitute service of co-occupant Pedro R. Torres on July 10, 2026 at 8:43 AM after documenting at least 2 prior attempts at personal service. The only evidence submitted by the Defendants in support of their motion to quash service is that they were not personally served. The Defendants' self-serving statements alone do not rebut the presumption under Evidence Code section 647. The Court DENIES the Defendants' Motion to Quash Service of Summons. In review of this file, the Court observed that the Defendants, Yesselin C. Flores aka Yesselin Torres and Pedro L. Torres, filed a Motion to Dismiss on 7/27/2026, the same day as the motion to quash service of summons in this matter. The Motion to Dismiss is set for hearing on 8/28/2026. A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. As the Motion to Dismiss is not a proper filing under CCP § 1170(a), the Court is STRIKING the Motion to Dismiss. All Defendants are ordered to file a responsive pleading under CCP § 1170(a) within 5 calendar days. Plaintiff is ordered to serve notice of this Court's ruling.

The Court has read and considered the Defendant's Motion for Judgment on the Pleadings (ROA 73), Defendant's Motion for Summary Judgment (ROA 76), and Plaintiff's Opposition to Defendant's Motion on the Pleadings (ROA 80).

American Family Housing participates in affordable housing programs connected to federal subsidies, thereby triggering the notification requirements of the Violence Against Women and Department of Justice Reauthorization Act of 2022 (VAWA), as reflected in Lease Addendum AFH-10. Pursuant to 24 C.F.R. § 5.2005(a)(2)(iii), a covered housing provider must provide a tenant with the Notice of Occupancy Rights Under VAWA and the VAWA certification form at specified times, including when serving a notice to terminate the tenancy.

As explained in *DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 11:

"The plain and commonsense meaning of the statutory language contained in 24 Code of Federal Regulations part 5.2005 (2019) requires VAWA notices to be served with any notice of termination. There is no language in the statute that would support a meaning that the VAWA notices only need to be served with notices of termination that are premised on domestic violence. ... Respondent was required to serve the VAWA notices on appellant prior to filing a complaint for unlawful detainer against appellant."

Here, the Proof of Service for the Notice to Pay Rent or Quit identifies only the "Notice to Pay Rent or Quit" as the document served. It contains no indication that the Notice of Occupancy Rights Under VAWA or the required VAWA certification form accompanied the notice. The record likewise contains no other evidence demonstrating that the required VAWA documents were served contemporaneously with the notice to pay rent or quit.

California unlawful detainer proceedings require strict compliance with all applicable statutory notice requirements, including those imposed by applicable federal law. A landlord's failure to comply with mandatory notice requirements before commencing an unlawful detainer action renders the notice legally defective and precludes the action from proceeding.

Because Plaintiff is a covered housing provider subject to VAWA's notice requirements, and because the undisputed evidence demonstrates that Plaintiff did not serve the required VAWA documents together with the Notice to Pay Rent or Quit as required by 24 C.F.R. § 5.2005(a)(2)(iii), Plaintiff failed to satisfy a mandatory precondition to maintaining this unlawful detainer action. This defect cannot be cured after service of the notice.

Accordingly, the Court concludes that Plaintiff has failed to establish a legally sufficient basis for the unlawful detainer action. Defendant's Motion for Summary Judgment is therefore **GRANTED**.

		The Court finds for the Defendant, Sylvia Zamora, that she was not properly served with a notice to pay rent or quit with the proper VAWA notices; therefore, Ms. Zamora is entitled to possession of the property and is the prevailing party in this matter. Defendant's counsel may submit a motion for attorneys' fees and court costs. Defendant's counsel is ordered to prepare a judgment consistent with this Court's order. As the Court granted the motion for summary judgment, the Court need not address the motion for judgment on the pleadings.
6	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff's Motion in Limine (ROA 98) and Defendant's Opposition (ROA 103). The Court takes Judicial Notice of the Defendant's Answer (ROA 48), the Clerk's Certificate of Mailing/Electronic Service (ROA 56), the 7/6/2026 Minute Order (ROA 64), and the Clerk's Certificate of Mailing/Electronic Service (ROA 65). On June 20, 2026, an e-filing clerk in the Superior Court Clerk's Office emailed notice to the parties setting the matter for a court trial on July 6, 2026. On the evening of July 5, 2026, while reviewing the file, the Court determined that the matter had been erroneously set for a court trial because the Defendant had timely demanded a jury trial in the Answer filed on June 8, 2026. On July 6, 2026, the Defendant did not appear. Due to the scheduling error, the Court took the matter off calendar and reset the case for jury trial on July 27, 2026, with a pretrial conference on July 24, 2026. By Motion in Limine, the Plaintiff requests an order precluding the Defendant from presenting or referring at trial to any evidence or documents not produced in response to discovery. According to the declaration of Plaintiff's counsel, the Defendant did not produce any documents in response to discovery requests served on July 9, 2026. The Defendant opposes the motion, arguing that the discovery requests were untimely because, at the time they were served, the matter was set for trial on July 6, 2026. Defendant contends that, under California Code of Civil Procedure section 2024.020(b)(1), the discovery cutoff occurred 5 days before the originally scheduled trial date of July 6, 2026, rendering the requests untimely. The California Court of Appeal held that discovery sanctions such as excluding a party's witness for failure to identify the witness in discovery are appropriate only if the omission was willful or a violation of a court's order compelling a response. (<i>Mitchell v. Superior Court</i> (2015) 243 Cal.App.4th 269, 272.) The Court DENIES the Plaintiff's Motion in Limine as to all evidence which was not turned over during discovery. Orange County Superior Court Local Rule 317 requires parties who are set for a jury trial to have an issue conference at least 14 days before the date set for trial to do several things, including exchanging exhibits. The Court orders the Defendant and the Plaintiff's Counsel to meet today outside the courtroom to complete the objectives of Local Rule 317. Each

		party is ordered to turn over the documents they intend to admit into evidence by 5 PM today to the other party and disclose the names of witnesses they intend to call to testify. Failure to follow the Court's order and comply with Local Rule 317 will result in sanctions pursuant to Orange County Superior Court Local Rule 381.